

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index #

Date purchased:

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SAMUEL S. KOHN,

Plaintiff,

SUMMONS

v.

THE CITY OF NEW YORK, NEW YORK CITY HEALTH
AND HOSPITALS CORPORATION (NYCHHC), and
NIGEL RICKETTS,

Defendants.
-----X

Plaintiff designates New York
County as the place of trial
based on the location where
the cause of action arose, as
per CPLR §504(3)

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York). In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 30, 2019

Yours etc,



Leonid Krinsky, Esq.
Attorney for Plaintiff
45 Broadway, 27th Floor
New York, New York 10006
(212) 269-7000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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SAMUEL S. KOHN,

Plaintiff,

VERIFIED COMPLAINT

v.

THE CITY OF NEW YORK, NEW YORK CITY HEALTH
AND HOSPITALS CORPORATION (NYCHHC), and
NIGEL RICKETTS,

Defendants.
-----X

Plaintiff Samuel S. Kohn, by his attorney Leonid Krinsky, for his Verified Complaint
states as follows:

INTRODUCTION

1. In this negligence action, Plaintiff seeks damages arising from an assault on Plaintiff by a homeless and mentally ill individual that took place on February 1, 2018 at or about the intersection of Madison Avenue and East 47th Street in the City, County, and State of New York. As a result of the assault, Plaintiff has sustained, serious, severe, and permanent personal injuries.

2. Plaintiff alleges that Defendants The City of New York and New York City Health and Hospitals Corporation (NYCHHC) proximately caused the assault because they breached their common-law duty to Plaintiff and other members of general public by failing to protect Plaintiff and other members of general public from Defendant Nigel Ricketts, the homeless and mentally ill individual who shortly before and/or on the day of the assault had been in the custody and/or under the care of the facilities owned and operated by the municipal Defendants. Defendants The City of New York and New York City Health and Hospitals Corporation (NYCHHC) knew or should have known that Defendant Nigel Ricketts posed harm

to the general public and they failed to exercise their reasonable duty of care, thus proximately causing the assault.

3. Plaintiff also asserts an assault and battery cause of action against Defendant Nigel Ricketts, the assailant.

PARTIES

4. At all relevant times, Plaintiff Samuel Kohn was a New York attorney who resided in Westchester County in the State of New York.

5. At all relevant times, Defendant The City of New York was a municipal corporation established by New York State Legislature. Defendant The City of New York owned or operated medical facilities and homeless shelters that provide in-patient and out-patient medical care, counseling services, and other services to mentally ill and homeless persons.

6. At all relevant times, Defendant New York City Health and Hospitals Corporation (NYCHHC) was a public benefit corporation that maintained and operated public health facilities and shelters within New York City providing in-patient and out-patient medical care, counseling services, and other services to mentally ill and homeless persons.

7. At all relevant times, Defendant Nigel Ricketts was a mentally ill and homeless individual. On information and belief, prior to the time of the assault, Defendant Nigel Ricketts was receiving in-patient and out-patient medical care, counseling services, and other services to mentally ill and homeless persons from the municipal Defendants.

CAUSE OF ACTION AGAINST THE CITY OF NEW YORK

8. Plaintiff adopts by reference paragraphs 1-6.

9. On information and belief, prior to and on February 1, 2018, Defendant the City of New York undertook to provide and did in fact provide in-patient and out-patient medical care, counseling services, and other services to Defendant Nigel Ricketts.

10. On information and belief, Defendant the City of New York was negligent in providing the in-patient and out-patient medical care, counseling services, and other services to Defendant Nigel Ricketts. Specifically, among other things, on information and belief, Defendant The City of New York, by and through its agents, servants, and employees, (1) failed to treat Defendant Nigel Ricketts according to generally accepted medical and psychiatric standards; (2) failed to heed the danger that Defendant Nigel Ricketts posed to himself, to Plaintiff, and to the general public; (3) failed to provide Defendant Nigel Ricketts with proper and adequate mental health care, drug treatment therapy, or clinical supervision; (4) failed to detain Defendant Nigel Ricketts involuntarily in light of his medical history and condition, as it was authorized to do and as it was required to do under the Mental Hygiene Law; (5) failed to provide sufficient post-discharge planning and proper out-patient care; (6) failed to ensure that Defendant Nigel Ricketts took proper medication; and (7) was otherwise negligent in failing to take steps to protect Plaintiff and the public from Defendant Nigel Ricketts who it knew posed danger to the members of the general public, and specifically to Plaintiff.

11. On information and belief, the aforementioned negligent conduct of Defendant City of New York was a substantial factor in causing the assault of Defendant Nigel Ricketts on Plaintiff.

12. On information and belief, the aforementioned negligent conduct of Defendant City of New York, resulted in Plaintiff sustaining serious, severe, and permanent physical

injuries and lost earnings; causing Plaintiff to incur significant sums on medical and other care and to experience extensive confinement.

13. Plaintiff complied with all the conditions precedent to filing this action. Specifically, (1) a Notice of Claim was duly served upon Defendant the City of New York pursuant to GML 50-e and GML 50-I on April 27, 2018, which was within 90 days of the statutory date of accrual of the cause of action; (2) that 30 days elapsed since the service of the Notice of Claim and the adjustment of the claim has been neglected or refused; (3) that on April 3, 2019 plaintiff attended a GML §50-h hearing per the Defendant the City of New York's demand; and (4) that this action is being commenced within 1 year and 90 days of the accrual of the cause of action.

14. Plaintiff requests the Court to award Plaintiff damages against Defendant the City of New York in the amount it deems just and proper as well as the action's costs; and grant Plaintiff other relief it deems just and proper.

CAUSE OF ACTION AGAINST NEW YORK CITY HEALTH AND
HOSPITALS CORPORATION (NYCHHC)

15. Plaintiff adopts by reference paragraphs 8-14.

16. On information and belief, prior to and on the February 1, 2018, Defendant New York City Health and Hospitals Corporation (NYCHHC) undertook to provide and did in fact provide in-patient and out-patient medical care, counseling services, and other services to Defendant Nigel Ricketts.

17. On information and belief, Defendant New York City Health and Hospitals Corporation (NYCHHC) was negligent in providing the in-patient and out-patient medical care, counseling services, and other services to Defendant Nigel Ricketts. Specifically, among other things, Defendant New York City Health and Hospitals Corporation (NYCHHC), by and through

its agents, servants, and employees, (1) failed to provide care according to generally accepted medical, psychiatric standards, and counseling standards; (2) failed to heed the danger that Defendant Nigel Ricketts posed to himself, to Plaintiff, and to the general public; (3) failed to provide Defendant Nigel Ricketts with proper and adequate mental health care, drug treatment therapy, or clinical supervision; (4) failed to detain Defendant Nigel Ricketts involuntarily in light of his medical history and condition, as it was authorized and required to do under the Mental Hygiene Law; (5) failed to provide sufficient post-discharge planning and proper out-patient care; (6) failed to ensure that Defendant Nigel Ricketts took proper medication; and (7) was otherwise negligent in failing to take steps to protect Plaintiff and the public from Defendant Nigel Ricketts, who it knew posed danger to the members of the general public, and specifically to Plaintiff.

18. On information and belief, the aforementioned negligent conduct of Defendant New York City Health and Hospitals Corporation (NYCHHC) was a substantial factor in causing the assault of Defendant Nigel Ricketts on Plaintiff.

19. On information and belief, the aforementioned negligent conduct of Defendant New York City Health and Hospitals Corporation (NYCHHC), resulted in Plaintiff sustaining serious, severe, and permanent physical injuries and lost earnings; causing Plaintiff to incur significant sums on medical and other care and to experience extensive confinement.

20. Plaintiff complied with all conditions precedent to filing this action. Specifically, (1) a Notice of Claim was served upon Defendant the New York City Health and Hospitals Corporation (NYCHHC) pursuant to GML 50-e and GML 50-I on April 27, 2018, which was within 90 days of the statutory date of accrual of the cause of action; (2) that 30 days elapsed since the service of the Notice of Claim and the adjustment of the claim has been neglected or

refused; (3) that on April 3, 2019, plaintiff attended a GML 50-h hearing per the Defendant New York City Health and Hospitals Corporation (NYCHHC)'s demand; and (4) that this action is being commenced within 1 year and 90 days of the accrual of the cause of action.

21. Plaintiff requests the Court to award Plaintiff damages against Defendant the City of New York in the amount it deems just and proper as well as the action's costs, and grant Plaintiff other relief it deems just and proper.

CAUSE OF ACTION AGAINST NIGEL RICKETTS

22. Plaintiff adopts by reference paragraphs 5-21.

23. On the evening of Thursday, February 1, 2018 at approximately 6:45 p.m., Plaintiff, was walking from his place of employment located at 52nd Street and the Avenue of the Americans in New York, New York to Grand Central Station to take Metro-North train to his home.

24. As Plaintiff was walking along Madison Avenue and crossing from the Northeast corner of 47th Street to the Southeast corner, with no prior warning, Plaintiff saw an unknown man barreling in his direction whose identity plaintiff later learned and whose name was Nigel Ricketts, the Defendant herein.

25. At the distance of about 10 (ten) feet away, Defendant Nigel Ricketts headed straight toward Plaintiff and yelled "*You're going to give me money!*"

26. Within seconds and without giving Plaintiff any chance the respond, Defendant Nigel Ricketts willfully, maliciously, and without any just cause or provocation on the part of Plaintiff assaulted and battered Plaintiff by pushing him forcefully with both hands causing Plaintiff to violently fall to the ground and hit left shoulder.

27. As a result of the assault and battery, Plaintiff was caused to sustain serious, severe, and permanent injuries to Plaintiff, including but not limited to, to the numerous fractures of left humerus. causing Plaintiff to be disabled and incur loss of earnings, to expend significant sums on medical and other care, and to experience extensive confinement.

28. Plaintiff requests the Court to award damages against Defendant Nigel Rickets in the amount the Court deems just and proper, award Plaintiff punitive damages and attorney's fees to be determined upon the trial of this action, together with the costs and disbursements of this action.

29. I certify to the best of my knowledge, information and belief formed after an inquiry reasonable under the circumstance that the contentions set forth herein are not frivolous as defined in New York Court Rules 130-1.1(c).

WHEREFORE, Plaintiff respectfully asks the Court to award him-damages in the amount the Court deems just and proper together with the disbursements of this action as well as other relief it deems just and proper.

Dated: New York, New York
April 30, 2019

Yours etc,



Leonid Krinsky, Esq.
Attorney for Plaintiff
45 Broadway, 27th Floor
New York, New York 10006
(212) 269-7513

VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK)

ss:

LEONID KRIMSKY, affirms the following under the penalty for perjury pursuant to CPLR
2106:

That I am an New York attorney, the attorney for Plaintiff Samuel S. Kohn in this action,
and I have read the foregoing Summons and Verified Complaint and the same is true to my own
knowledge except as to those matters alleged therein to be on information and belief, as to those
matters I believe them to be true. I make this verification instead of Plaintiff as Plaintiff does not
reside in the county where I maintain my offices.

New York, New York
May 1, 2019

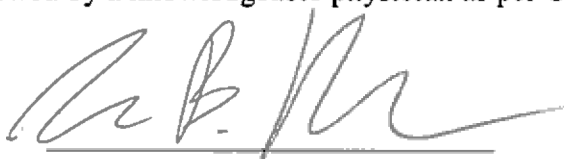
A handwritten signature in dark ink, appearing to read 'L. Krinsky', written over a horizontal line.

Leonid Krinsky

CERTIFICATE OF MERIT PURSUANT TO CPLR §3012-A

I am the attorney of record in the above action, and I certify that I was unable to obtain a consultation concerning the merits of this action as I did not have access to the medical, counseling, and other counseling records of Defendant Nigel Ricketts.

The certificate will be served or the medical malpractice claims will be discontinued as soon as the records are obtained and reviewed by a knowledgeable physician as per CPLR §3012-A(d).

A handwritten signature in black ink, appearing to read 'L. Krinsky', is written over a horizontal line.

Leonid Krinsky